

Stereotypes:

This image is meant to address some of the stereotypes I have heard about women's prison since taking Professor Jackson's class. I was recently talking about this project with a friend. She told me about being a single mom and how it was so difficult to find time for herself while she was raising her daughter. She explained that she used to think about committing a series of crimes, just so she could be put in prison and sit around reading and writing all day. In another instance, I was discussing the negative aspects of the penal system, and their particular impact on women, with a member of the criminal defence bar. He found it very difficult to accept what I was telling him, and responded to my assertions by telling me that as far as he was concerned, women's prison was just a "knitting club." It was that characterization that I drew upon in creating this picture.

I wanted to create the image of a very subdued woman, content to bide time and knit while she served her sentence. To do this, I used an antique rocking chair and a green velvet dress, circa 1940. The significance of the green dress is rooted in the visit our class took to the Matsqui prison. I noticed that the garments worn by prisoners at Matsqui (and in videos Professor Jackson showed to our class) were green, rather than orange as seen in television shows. Turning to other aspects of the photograph, I kept the makeup clean and simple to reflect the "no frills" attitude of prison. Thinking about other women's prison stereotypes, I opted for a 1920s hairstyle, reminiscent of the musical *Chicago*. The placement of the chair by the window was also a deliberate act; the light coming in from the outside representing the hope of release on parole or the end of a sentence, but the curtain over it representing the enclosure of the prison space.

The pose is meant to reflect the attitude of my friend, who believed that prison was a place where women could lie around and read all day. It is meant to be languid and fluid, emphasizing feminine parts of the body, without being overly sensual, and evoking the notion of patience and resolution to one's fate.

Violence:

The image I wanted to create was one that explored some of the various aspects of violence present in women's prison. I wanted to explore not only the aspects of violence that immediately come to mind when one thinks of the word, but also those forms of violence that are institutionalized in women's prisons.

I was particularly struck when reading an article in Macleans that Professor Jackson circulated to the class. It discussed the role that higher mandatory minimum sentences and an increase in the number of offences that carry mandatory minimums will play in the incarceration of female persons. The author argued that increases in mandatory minimum sentences will have a significant impact on female inmates and their rights and lives in prison. For example, higher numbers of women in prison, a necessary by-product of increases in mandatory minimum sentences, will result in many women being housed in segregation cells. Indeed, the article explained that some women are currently being double-bunked in segregation cells.

This image bears those ideas in mind. I chose to set it against a brick wall, which reminded me of the brick walls I observed throughout the Matsqui institution during our class visit to the prison. Leather seemed an appropriate choice for the outfit, due to the fact that it is material typically associated with violence and a tough attitude. The pose is

meant to conjure feelings of movement and also a violent action. My fist is clenched, while my leg is raised, denoting either an intention to fight or an intention to defend myself.

The other aspect of the wardrobe in this image which is important to the story I am attempting to create is the incorporation of my Metis sash into the image. As an Aboriginal woman, I am particularly impacted and concerned by stories of female Aboriginal inmates. I chose to use my sash in this image in order not only to represent my heritage, but also to represent the overrepresentation of Aboriginal women in the criminal justice system. The Macleans article discussed this point. It cited Michelle Mann, a legal consultant specializing in Aboriginal justice, who has determined that Aboriginal women face discrimination in prisons due to the fact that they are often given higher security ratings than they needed. Aboriginal women are also more likely to be incarcerated for violent offences than non-Aboriginal women, and more likely to be placed in segregation. There is no denying that discrimination against Aboriginal women by over-classification on a security rating scale is a form of institutionalized violence. The over-classification results in these women having a more difficult time accessing resources to treat their addiction and mental health issues.

The Metis sash is meant to represent these issues, and represent the struggle that Aboriginal women experience with violence in prison. However, it is also representative of some of the healing that can take place in the prison system. Because there are specific rules of sentencing pertaining to Aboriginal offenders, many individuals who are serving prison sentences find encouragement to seek out their Aboriginal heritage and begin to explore that. Indeed, there are many other

opportunities for Aboriginal inmates to serve their sentences. In class, we watched a video about a minimum-security BC institution that houses Aboriginal inmates and demonstrates a high rate of success in offering programs for rehabilitation. The Metis Nation operates a minimum-security prison in Alberta. And the Macleans article discussed the Okimaw Ohci Healing Lodge in Maple Creek, Saskatchewan, which houses approximately 40 Aboriginal inmates and uses a cultural approach in dealing with these inmates.

Ashley Smith:

When I first heard the story of Ashley Smith, I was shocked. I could not believe that a 13-year-old girl could be incarcerated for assault and never be released again. I was even more devastated to hear about the conditions in which Ashley was forced to live while on the Management Protocol. Ashley was clearly suffering from serious mental health issues and needed treatment, rather than the ignorance she received from the correctional officers. I was not alone in my concern over this situation. My classmates appeared as shocked as I was the first time this story was related to us. I was also struck by the very emotional response to her situation displayed by Gary Weaver when he came to speak to the class. It became clear to me that the tragic tale of Ashley's life and death is something that resonates profoundly with many individuals involved in the criminal justice system.

I encountered a great deal of difficulty in creating this image. I wanted to tell Ashley's story in a way that was respectful to her memory and would honour her. I was concerned about being overly literal in expressing the factual circumstances of how she

died, as I felt that could come off both cheesy and insensitive. I wanted to bring some dignity back to Ashley's life, while allowing her to have something she never had. This goal was something that was consistent with using the idea of a fashion editorial to tell the story of women in prison. By telling her story through my role of a fashion model, I was able to allow her to experience, in some small way, a glamorous life that many young girls dream about. That being said, I have no way of knowing whether Ashley wanted to be a model, I can only surmise.

I was able to relate, to some extent, to the story of Ashley Smith. As a teenager, I experienced a traumatic event, which left me extremely troubled. By age sixteen, I had developed an alcohol problem. I was drinking alone, in my room, on a daily basis. I committed several crimes, although I was very lucky never to be caught. I had been self-harming for three years, and the wounds I was inflicting were becoming deeper and more dangerous. I didn't sleep; I chased various prescription medications that I could find around the house with liquor. My life continued into a downward spiral until shortly before my eighteenth birthday. I attempted suicide, and was placed immediately in a suicide prevention program for youth in my town. My suicidal ideation continued, despite the treatment I was receiving. The suicide counsellor I saw determined that my case was of such severity that I required an immediate referral to a psychiatric facility. I missed six weeks of my last year of high school while working through my mental issues. It took several years for me to fully recover from these events.

When I think back on this time in my life, I realize that there is very little that separates me from someone like Ashley Smith. I was lucky not to be caught while committing offences; I was lucky to receive treatment for my mental health issues; I was

lucky to be discovered during my suicide attempt and have someone act to prevent further harm to myself. If Ashley had not been convicted of the initial assault, perhaps she would still be alive today. If Ashley had received treatment for her mental health issues, perhaps she would still be alive today. If someone had responded to Ashley's suicide attempt, she would still be alive today. These things never happened for her, but they did for me.

Returning to the photograph, I chose to put Ashley in a long red gown. This dress is representative of a graduation dress that a teenager might wear following the graduation ceremony at her school. I think this is important because the educational system was the first to give up on Ashley. Perhaps if her schools had tried harder or used different strategies to address her behaviour disorder, she would never have been in prison in the first place. Ashley never graduated high school; she never had the opportunity. The colour of the dress is indicative of the blood that is now on the hands of the correctional system. They are responsible for the death of Ashley Smith. They are responsible for dozens of other women who are facing other tragic situations in Canadian prisons. The blood is on their hands. The Canadian government is responsible for remedying this.

For wardrobe, I chose a dress with a halter neckline and a strap that wrapped around the neck. Ashley frequently self-harmed by choking herself. Her final act of self-harm, that is, her suicide was committed by hanging herself. I wanted to imply this without being disrespectful. The halter neckline achieves this. Ashley is seen in this image touching the rope around her neck, as if she is asking for help. I believe Ashley

wanted to live; I believe she needed human contact and nurturing in order to survive. She was denied this, but I do not think she wished for the end result.

Regarding the makeup, I put Ashley in a purple lipstick. When I first heard Ashley's story, I was told that she was left dead in her segregation cell for such a long time that the blood in her body had pooled on the side of her face, discolouring it to a deep purple. I used purple lipstick to imply this, rather than having the makeup artist recreate Ashley's circumstances in the image. This is consistent with my goal of remaining respectful to Ashley's memory and not being too literal in representing her story.

Lastly, the lighting and set-up of the shot is important to the message I am trying to send. I imagined the classic dramatic actress, silhouetted by a single spotlight, singing a tragic ballad. It is a stereotypical image, yes, but one that is also powerful and evokes a great deal of emotion. The blackness that surrounds Ashley is representative of the darkness that enveloped her time in prison, as well as her life in general. But it also represents the darkness that exists in the correctional system in Canada. However, the single white light in the corner of the frame is indicative of hope. There is hope that we, as Canadians, will learn from Ashley's story and correct the problems with the system that created this tragedy. There is also hope that the efforts of Professor Jackson and other lawyers like him (and hopefully myself, one day) will be successful in ensuring that inmates are treated with humanity and dignity. But the light is also representative of the light that surrounds a person when they are dying. My hope is that Ashley was able to find some lightness, that she was able to find a better place in her death than she found in her life.

Secondary Sources:

Findlay, Stephanie. "Trouble in the big house: How mandatory minimum sentencing could make it worse for women in prison." (January 17, 2011). Online: Macleans: [<http://www2.macleans.ca/2011/01/17/trouble-in-the-big-house/2/>](http://www2.macleans.ca/2011/01/17/trouble-in-the-big-house/2/).

Office of the Ombudsman & Child and Youth Advocate, *The Ashley Smith Report*, (New Brunswick: Office of the Ombudsman & Child and Youth Advocate, 2008).